

25VECV06346 25VECV06346

County: los-angeles

Division: Civil Law and Motion

Department: I

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25VECV06346 SOFI

LENDING CORP. AS ATTORNEY-IN-FACT FOR SANTANDER BANK, NA vs BRYAN YOUNG

August 7, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling - Motion to Set Aside

Default (CCP § 473)

I.

Background

On November

5, 2025, Plaintiff SoFi Lending Corp. as attorney-in-fact for Santander Bank,

N.A. ("Plaintiff") filed a complaint against Defendant Bryan Young

("Defendant") and Does 1 to 10 alleging one cause of action for breach of contract.

On May 22,

2026, Defendant filed the instant motion to set aside default.

To date,

the motion remains unopposed.

II. Motion

to Set Aside Default

Additionally, Cal. Code of Civ. Proc. § 473.5(a) provides that “[w]hen service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him or her in the action, he or she may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” (CCP § 473.5(a).)

III.

Analysis

Defendant argues that he was not properly served with the summons and complaint and only became aware of this action after the Order to Show Cause on April 15, 2026. (Motion at 1:21-24.) Specifically, Defendant declares that “[a]t the time Plaintiff purportedly effected personal service of the Summons and Complaint on November 14, 2025, my residence located at 20734 Clark Street, Woodland Hills, California 91367 was occupied by a short-term guest through VRBO . . .” (Young Decl. at ¶ 3)(emphasis added.)

Notably, Defendant admits that service occurred at his residence. CCP § 415.20 permits service by “leaving a copy of the summons and complaint . . . at the person’s usual mailing address . . . with the person who is apparently in charge thereof . . . with a person at least 18 years of age . . .” (CCP § 415.20(a).) Here, Young admits that service was left at his residence (a usual mailing address) with someone over the age of 18. (See Young Decl. at ¶ 3.) Therefore, service was proper pursuant to CCP § 415.20, and Defendant’s motion is denied.

IV. Conclusion

Based on the foregoing, Defendant’s motion to set aside default is DENIED.

Moving party to give notice.